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Case Number: 24CHCV01514 Hearing Date: August 3, 2026 Dept: F49

Dept. F49

Date: 8/3/26

Case Name: Sadiqa K. Harris; Djuan C. Smith vs Southern

California Regional Rail Authority dba Metrolink; Leslie O'Neil Holloway;

State of California; County of Los Angeles; City of Santa Clarita; and Does

1-50

Case No. 24CHCV01514

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

AUGUST 3, 2026

MOTION TO COMPEL FURTHER

RESPONSES TO REQUESTS FOR PRODUCTION

Los Angeles Superior

Court Case No. 24CHCV01514

Motion filed: 2/17/26

MOVING PARTY: Plaintiff Sadiqa K. Harris

RESPONDING PARTY: Defendant Leslie Holloway

NOTICE: OK

RELIEF REQUESTED: An order from this Court compelling Defendant Leslie Holloway to serve further verified responses and produce responsive documents to Plaintiff Sadiqa K. Harris' Request for Production of Documents, Set One, Nos. 11-12 and 21-23.

TENTATIVE RULING: The motion is GRANTED.

BACKGROUND

On April 23, 2024, Plaintiffs Sadiqa Harris ("Harris") and Djuan Smith ("Smith") (collectively, "Plaintiffs") initiated this action seeking damages arising from the death of their son, Maseeh Muhammad ("Muhammad"). Muhammad was walking his dog on the sidewalk near railroad tracks in Santa Clarita, California, when he was allegedly struck and killed by a Metrolink train unsafely operated by Defendant Leslie Holloway ("Holloway"). The Complaint alleges the following four causes of action against Holloway, Southern California Regional Rail Authority dba Metrolink ("Metrolink"), the State of California (the "State"), the County of Los Angeles (the "County"), the City of Santa Clarita (the "City"), and Does 1-50 (collectively, "Defendants"): (1) Wrongful Death (against all Defendants), (2) Negligence (against all Defendants), (3) Negligent Hiring and Supervision (against all Defendants), and (4) Dangerous Condition of Public Property (against Metrolink, the State, the County, the City, and Does 1-50). At the request of Plaintiffs, the County, the City, and the State have been dismissed from the action.

On March 28, 2025 and September 22, 2025, Metrolink and Holloway filed their respective Answers.

On February 17, 2026, Harris filed the instant motion to compel Holloway's further responses to Harris' Request for Production of Documents, Set One (the "Motion").

On July 21, 2026, Holloway filed an Opposition.

On July 27, 2026, Harris filed a Reply.

ANALYSIS

“On receipt of a response to a demand for inspection, copying, testing, or sampling, the demanding party may move for an order compelling further response to the demand if the demanding party deems that any of the following apply: (1) A statement of compliance with the demand is incomplete. (2) A representation of inability to comply is inadequate, incomplete, or evasive. (3) An objection is without merit or too general.” (Code Civ. Proc., § 2031.310, subd. (a).)

A. Procedural Requirements

(1) Timeliness of Motion

A party must bring a motion to compel further responses to requests for production within 45 days after the responding party serves verified responses or supplemental verified responses. (Code Civ. Proc., § 2031.310, subd. (c).) Parties may also agree in writing to a specific later date by which to file a motion to compel further responses. (Ibid.) If a motion to compel further responses is not timely made, the propounding party waives any right to compel a further response. (Ibid.)

Although not “‘jurisdictional’ in the fundamental sense, [the time limit] is ... ‘jurisdictional’ in the sense that it renders the court without authority to rule on motions to compel other than to deny them.” (Sexton v. Superior Court (1997) 58 Cal.App.4th 1403, 1410.)

Holloway served further verified responses to Harris’ Request for Production of Documents, Set One on January 30, 2026 via email. (Whitehead Decl., ¶ 15, Exh. D, Proof of Service.) The deadline to bring a motion to compel further responses was thus March 18, 2026. (Code Civ. Proc., §§ 1010.6, 2031.310.) The Motion, filed on February 17, 2026, was accordingly timely.

(2)

Meet and Confer

A motion to compel further responses to a demand for production must be accompanied by a meet and confer declaration under Section 2016.040. (Code Civ. Proc., § 2031.310, subd. (b)(2).) “A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion.” (Code Civ. Proc., § 2016.040.)

Plaintiffs’ counsel attests to exchanging meet and confer letters to Holloway’s counsel regarding deficiencies in both the initial and further verified responses. (Whitehead Decl., ¶¶ 10-13, 18-19, Exhs. B, C, E.) Email communications do not generally satisfy the in-person or telephonic meet and confer requirement of the Discovery Act. Nevertheless, given that the parties continued to meet and confer after the Motion was filed in an effort to resolve the matter informally (see Opp’n, at p. 2), the Court finds that the purpose of the meet and confer requirement has been fulfilled.

(3)

Separate Statement

A motion to compel further responses to a demand for production must be accompanied by a separate statement. (Cal. Rules of Court, rules 3.1345, subd. (a)(3).) “A separate statement is a separate document filed and served with the discovery motion that provides all the information necessary to understand each discovery request and all the responses to it that are at issue.” (Id., rule 3.1345, subd. (c).)

Here, Harris has filed a separate statement concurrently with the Motion. The separate statement identifies each request at issue, stating the text of the request and the initial and further responses and providing a reason why further response should be compelled. (See generally Harris’ Separate Statement (“Pl. SS”).) The Court accordingly finds that Harris has satisfied the requirements of California Rules of Court, rule 3.1345, subdivision (c).

B.

Motion to Compel Responses to Requests for Production

The party to whom a demand for production has been made must respond separately to each demand by any of the following: (1) a statement that the party will comply with the demand by the date set; (2) “[a] representation that the party lacks the ability to comply with the particular demand;” or (3) an objection to the demand. (Code Civ. Proc., § 2031.210, subd. (a).)

A statement of compliance with a particular demand must state whether compliance will be made in whole or in part, and “that all documents or things in the demanded category that are in the possession, custody, or control of that party and to which no objection is being made will be included in the production.” (Code Civ. Proc., § 2031.220.)

“A representation of inability to comply with [a] particular demand ... shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand. This statement shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party.” (Code Civ. Proc., § 2031.230.) The statement must also set forth the name and address of any person or organization known or believed to have possession, custody, or control of that item or category of item. (Ibid.)

If the responding party objects to the demand, the response must: (1) identify with particularity any document or item falling within the category of the demand to which an objection is being made; and (2) clearly set forth the extent of and specific ground for the objection. (Code Civ. Proc., § 2031.240, subd. (b).) “If an objection is based on a claim of privilege, the particular privilege invoked shall be stated.” (Id., § 2031.240, subd. (b)(2).)

(1)

The Responses at Issue

The Motion seeks to compel further responses to Request for Production of

Documents, Set One, Nos. 11-12 and 21-23. (Mot., at p. 3.) In his Opposition, however, Holloway indicates that he obtained additional responsive documents and supplemented his document production, leaving only Request No. 22 at issue. In Reply, Harris does not contend that Holloway's supplemental production is insufficient as to the remaining requests, directing argument solely to Request No. 22. The Court's ruling is accordingly limited to Request No. 22.

Request No. 22 seeks "All DOCUMENTS PERTAINING to the speed at which YOU were operating train #269 on September 4, 2023." (Pl. SS, at p. 8.)

In addition to asserting objections based on overbreadth, confidentiality, and attorney-client privilege and work product protection, Holloway's further response, served on July 14, 2026, states: "Responding Party will comply with this request and identifies records that are in the possession custody and/or control of Metrolink, SCRRRA Bates #909-910 and his deposition testimony. Responding Party also identifies Southern California Regional Rail Authority dba Metrolink, who may be contacted through counsel, and the Los Angeles Sheriff's Department, as entities who may also have documents responsive to this request." (Pl. SS, at p. 9.)

Harris contends that the foregoing response remains deficient because it does not state whether Bates Nos. 909-910 represent complete production of responsive materials or whether additional responsive documents exist. (Reply, at pp. 3-4.) Harris argues that a complete response would confirm: (1) that all responsive documents in Holloway's possession, custody, or control have been produced, (2) that Bates Nos. 909-910 constitute a complete responsive production, (3) whether additional documents exist, and (4) what software is necessary to access any native Event Data Recorder files. (Id., at p. 6.)

Holloway argues that his response fully complies with the Discovery Act and that Harris seeks relief beyond both what is requested and what is required by the Discovery Act. (Opp'n, at p. 7.) The Court notes that the moving papers seek to compel Holloway to: (1) describe the documents contained in the production and how they relate to the speed of the train, (2) state whether he reviewed Event Data Recorder files, (3) indicate whether he has any personal notes, logs, or records regarding the train's speed, and (4) confirm that the train was travelling at 50 miles per hour or provide evidence to the contrary. (Pl. SS, at p. 9.) While the Court would

agree that Code of Civil Procedure sections 2031.210 et seq. do not require such detailed description of the production being made, Harris' Reply dispenses with these requests and seeks only confirmation that full compliance with Request No. 22 has been made.

As to the response, it purports to be a statement of compliance. A statement of compliance must state whether production "will be allowed in whole or in part, and that all documents or things in the demanded category that are in the possession, custody, or control of that party ... will be included in the production." (Code Civ. Proc., § 2031.220.) Holloway's response does not so state, and is accordingly incomplete insofar as it does not verify that Bates Nos. 909-910 and Holloway's deposition testimony constitute all responsive documents within Holloway's possession, custody, or control.

(2)

Good Cause for Further Response

In addition to identifying the insufficiency of responses to a demand for production, a motion to compel further response "shall set forth specific facts showing good cause justifying the discovery sought by the demand." (Code Civ. Proc., § 2031.310, subd. (b)(1).) Good cause may be shown by a fact-specific showing of relevance. (Kirkland v. Superior Court (2002) 95 Cal.App.4th 92, 98.) Information is relevant to the subject matter if it "might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement." (Lipton v. Superior Court (1996) 48 Cal.App.4th 1599, 1611, emphasis omitted.)

The parties do not dispute the relevance of the requested production to the litigation, which is apparent from the nature of the claims. The Court therefore finds that good cause justifying further response exists.

Moreover, the Discovery Act contemplates that electronically stored information be produced in reasonably usable form. (See Code Civ. Proc., § 2031.280, subd. (e).) It is accordingly reasonable for Plaintiff to seek verified confirmation of what software is required to read the Event Data Recorder files produced.

Based on the foregoing, the Court GRANTS

the Motion insofar as it seeks confirmation: (1) that full production of the documents in Holloway's possession, custody, or control has been made in response to Request No. 22, and (2) of what software is required to read the Event Data Recorder material produced.

CONCLUSION

The Court GRANTS Plaintiff Sadiqa K. Harris' motion to compel further responses, consistent with the foregoing ruling. Defendant Leslie Holloway is ordered to serve further verified responses to Harris' Requests for Productions of Documents, Set One, No. 22 within 20 days.

Moving party to give notice.